

Agreement Validity & Partner Responsibilities

Please review this agreement carefully. This is a long-term contract that remains valid only if you, as the Prime Business Partner, fulfill all required payments and maintain an active account status. Signing this agreement does not guarantee its continuous validity; it is contingent on your adherence to timely payments and account compliance.

As your platform provider, we empower you with valuable business strategies, tools, and a robust platform to support your growth. While we provide guidance and assign tasks aimed at enhancing your operations, it is essential to understand that managing and running your business is your sole responsibility. Our employees do not directly manage your operations; instead, we provide the tools and opportunities for you to succeed.

Your growth depends on your efforts, commitment, and cooperation with our guidance. While we provide a foundation for your business, it is your action, initiative, and dedication that will drive success.

Prime Business Partner Agreement

This Prime Business Partner Agreement (the "Agreement") is entered into as of Date: 21.01.2025
by and between 'do N key Deliveries,' operating under the brand 'do N key' ("Provider"), and
Name: P. Ponvishal ("Prime Business Partner"), with an address at
6/38 PVS street, Thalavaipuram, Rajapalayam Taluk.

Prime Business Partner

P. Ponvishal
Signature

Last Updated: 27 Oct, 2024



Chinnalapatti, Dindigul



www.donkeydeliveries.com



support@donkeydeliveries.com



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1. Scope of Services

1.1 Services:

The Provider grants the Prime Business Partner exclusive rights to operate bike taxi and delivery services within the designated service areas, based on pin codes, as detailed on the platform [www.donkeydeliveries.com] and [www.donkey.delivery] (the "Services").

- Initially, to facilitate business establishment, the Prime Business Partner will be granted rights to operate across a larger area, comprising multiple pin codes.
- Over time, the subscription model may transition to a pin-code-wise or usage-based allocation, as deemed appropriate by the Provider. The Prime Business Partner will be informed of any changes in advance to ensure business continuity.

1.2 Autonomy:

The Prime Business Partner has the autonomy to set pricing policies for services, tailored to the local market.

- All pricing policies must comply with regional laws and the Provider's platform standards.
- The Prime Business Partner is encouraged to implement competitive and transparent pricing to maximize customer satisfaction and retention.

2. Obligations of the Parties

2.1 Provider's Obligations:

The Provider agrees to:

- Provide the Prime Business Partner with the necessary tools, resources, and support for the successful operation of the Services, including but not limited to platform access, technical assistance, and marketing materials.
- Maintain the confidentiality of any proprietary information shared with the Prime Business Partner, as outlined in the confidentiality clause.
- Ensure timely updates and communication regarding changes to the platform, policies, or operational guidelines.

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2.2 Prime Business Partner's Obligations:

The Prime Business Partner agrees to:

- Remit all fees and charges as specified in the payment terms section without delay.
- Adhere strictly to the guidelines, standards, and specifications provided by the Provider to maintain service quality and platform integrity.
- Uphold the standards of customer service, safety, and quality of operations as set forth by the Provider.
- Maintain accurate records and submit reports, if required, to ensure transparency and accountability.
- Comply with regional laws, regulations, and any additional requirements specified by the Provider for operating the services.

3. Payment Terms

3.1 Payment Amount and Schedule:

The Prime Business Partner agrees to pay the amount determined by the Provider, as per the payment schedule mutually agreed upon. Payment schedules will be communicated during onboarding and are subject to periodic review.

3.2 Discount Requests:

The Provider acknowledges that the Prime Business Partner may request discounts. Any approved discount shall be explicitly reflected in the payment terms and communicated in writing to avoid ambiguity.

3.3 Late Payment Policy:

- Payments delayed up to two days from the scheduled due date will result in proportional deductions from the Partner's payout.
- Payments delayed beyond two days will incur an additional penalty for late payment. The penalty amount will be determined based on the Provider's standard late payment policy and communicated beforehand.
- Consistent failure to meet payment deadlines may lead to suspension or termination of the Agreement.

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4. Confidentiality

4.1 Confidential Information:

Both parties commit to maintaining strict confidentiality regarding any proprietary or sensitive information disclosed during the term of this Agreement. This includes but is not limited to:

- Business strategies, financial data, and operational processes.
- Customer information, platform algorithms, and technical data.
- Any other information labeled as confidential or reasonably understood to be confidential by its nature.

4.2 Exceptions to Confidentiality:

Confidentiality obligations do not apply to information that:

- Is publicly available at the time of disclosure or becomes publicly available through no fault of the receiving party.
- Is legally required to be disclosed by a government authority, provided the disclosing party is promptly notified to seek a protective order.

4.3 Duration of Confidentiality:

Confidentiality must be maintained at all times and without limitation, unless otherwise agreed in writing by both parties.

5.1 Term:

This Agreement shall commence on the Effective Date and remain in effect until terminated by either party as outlined in this section.

5.2 Termination for Convenience:

The Prime Business Partner may terminate this Agreement by providing the Provider with at least **two months' advance notice** in writing.

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5.3 Termination for Cause:

The company reserves the right to terminate this Agreement with any Prime Business Partner immediately in the event of a material breach. If a breach occurs, the breaching party will be notified and given a reasonable period to remedy the issue. Failure to rectify the breach within the specified timeframe will result in termination of the agreement, at the company's discretion.

6. Miscellaneous

6.1 Governing Law:

This Agreement shall be governed by and construed in accordance with the laws of India. Any disputes arising from this Agreement shall be subject to the jurisdiction of courts located in India.

6.2 Entire Agreement:

This Agreement constitutes the entire understanding between the Provider and the Prime Business Partner. It supersedes any prior agreements, communications, or understandings, whether oral or written. Amendments to this Agreement must be made in writing and signed by both parties.

7. Additional Terms and Conditions

7.1 Responsibility for Product Delivery:

The Prime Business Partner is solely responsible for ensuring the successful delivery of products, whether directly or through an assigned driver.

7.2 Exclusion of Fragile and Expensive Items:

The Prime Business Partner must refrain from handling fragile or expensive items. The Provider will not be liable for damages, loss, or complaints related to such items.

- Non-compliance with this clause may result in the suspension or cancellation of the Partner's subscription, depending on the severity of the violation or complaint.

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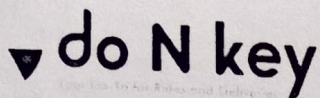
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7.3 Payment Alerts and Subscription Management

The Prime Business Partner will receive **payment alerts** three days before the subscription payment due date. It is the responsibility of the Prime Business Partner to manage the subscription and make payments promptly. Failure to do so may result in disconnection of services until the payment is received.

7.4 Brand Name Protection and Violation

Any actions taken by the Prime Business Partner or their employees that harm the **reputation of the Provider's brand** may result in immediate **cancellation of the subscription**. Additionally, the Prime Business Partner may be required to pay compensation based on the severity of the violation. This includes, but is not limited to, inappropriate marketing, dissemination of misleading information, or any unethical behavior conducted under the brand name.

7.5 Price Violation

The Prime Business Partner is prohibited from violating the **pricing policy**, especially **doubling the local market price**. The system is designed to automatically detect such violations, and any such occurrence will lead to **automatic removal of the subscription**.

7.6 Subscription Pricing Structure

The subscription price may change periodically based on **user traffic**. Traffic will be categorized into **tier 1, tier 2, tier 3, and tier 4**, with potential **price hikes** in higher-tier areas to support increased service demand and maintenance costs.

7.7 Sharing Opportunity Information

The Prime Business Partner is allowed to share the **business opportunity** with potential partners, but the sharing of **sensitive company information**, including both **technical and non-technical data**, with third parties is strictly prohibited. Violating this clause will constitute a breach of the contract.

7.8 Rating Monitoring for Drivers

The Prime Business Partner is responsible for monitoring and managing driver ratings. Drivers who consistently maintain an **overall rating below 3.5** after a specified period may be subject to subscription cancellation based on the severity of the issue.

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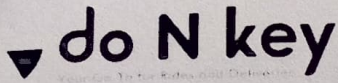
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7.8 Intellectual Property and Data Selling

The Prime Business Partner is prohibited from disclosing any **intellectual property** related to the platform, including user interfaces, branding, and official records. Additionally, selling or sharing **user data** is strictly prohibited. The Provider reserves the right to take legal action and cooperate with relevant authorities if such breaches occur.

7.10 Confidentiality of Account Details

The Prime Business Partner must never share their **subscriber ID, registered email ID, or login credentials** with anyone. This information is confidential and should be kept secure to prevent unauthorized access to the account.

7.11 Driver Approval Timeline

The approval process for drivers typically takes **two to three days**, but this may vary based on the clarity and completeness of the documents provided. Any delays or issues in document submission may extend the approval timeline.

7.12 Sharing Company Information

Sharing any company information, including the terms of this Agreement, on public platforms is a violation of this contract and may lead to legal action. This includes disclosing confidential business strategies or sensitive operational details.

7.13 Dealing with Illegal Products

If the Prime Business Partner is found to be dealing with **illegal products** in any manner, their **subscription may be immediately canceled**. This includes any illegal or unethical goods transported or delivered through the platform.

7.14 Verification Process and Reattempts

Once the verification process is complete, you will receive a verified badge. During the verification process, if **our verification team reaches out to you** and you fail to respond within **2 weeks from the date of the attempt, the process will be canceled**. To initiate verification again, you will be required to pay for the process once more, and it will be treated as a new verification request.

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7.15 False Accusations

The Prime Business Partner is prohibited from making false accusations or complaints without proper proof. Making false allegations may result in the **cancellation of the subscription**.

7.16 Assistance in Branding Ads

The Prime Business Partner must refrain from using **negative marketing tactics** or **inappropriate/unprofessional language** in any **branding** or **advertisements**. All marketing materials must adhere to professional standards and reflect the brand's image positively.

7.17 Handling of Electrical Goods

For the local delivery of electrical goods, it is recommended that the Prime Business Partner assumes responsibility for the safe handling and delivery. If necessary, the Partner may deny orders that they believe cannot be safely transported or do not meet the service standards.

7.18 Payment Handling and Payouts

All online payments will be processed by **do N key Deliveries**, and payouts will be made through **IMPS/NEFT** on **Mondays and Thursdays**. There is **no minimum threshold** for payouts, but the payout duration may vary due to **bank processing times** and **holidays**.

7.19 Inactive Account Handling and Background Verification

- If the account remains unpaid and inactive for more than one or two months, the **physical background verification** conducted will remain valid for up to **six months** from the date the account became inactive.
- After this six-month period, if the Prime Business Partner wishes to **reactivate the account**, they will be required to **pay the setup costs again**, and the entire process, including **physical background verification**, will need to be restarted from the beginning.

7.20 Branding Ads Language Restrictions

- **Language restrictions** apply to branding ads. Using negative language or **marketing tactics** is strictly prohibited.
- All ads and branding materials must reflect a **positive** and **professional** tone, aligned with the company's values and standards.

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7.21 Government Intervention

- In the event of **government intervention** affecting our services, the company will **comply with all applicable regulations and norms** to ensure that operations continue to be **legally compliant**.
- Any adjustments or changes to services due to government intervention will be communicated promptly to all involved parties.

7.22 Reliance on Third-Party Maps

- The services provided heavily rely on third-party providers, including but not limited to **maps, payment gateways, and in-app notification systems**.
- In the event of any issues with these third-party services, the company will make every effort to resolve the issue as **quickly as possible**. The duration of resolution will depend on the severity and nature of the issue.

7.23 Delivery of Products During Long Rides

- For **long rides**, it is recommended that the Prime Business Partner **fix the price accordingly**.
- However, the company **does not assure or guarantee** return orders, as it depends on **service availability**. Any pricing adjustments or guarantees should be managed independently.

7.24 Publishing Agreement and Data

- Publishing the **Agreement** or any other sensitive company data, including website features, workflow, or **intellectual property**, on **public platforms** is a **breach of this Agreement**.
- This includes any dissemination of confidential business operations, intellectual property, or other proprietary information. Legal action may be taken if this occurs.

7.25 Dealing with Illegal Products

- If the Prime Business Partner is found dealing with illegal products, the subscription may be cancelled immediately.
- This includes any form of illegal activity or involvement with prohibited goods or services.

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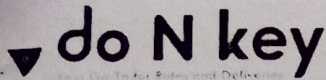
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7.26 False Accusations Handling

- In the event that **false accusations** are made against the brand without **substantial proof**, the company reserves the right to **cancel the subscription** of the individual making such claims.
- **Legal action** may be pursued if the false accusations cause harm to the brand's reputation or operations, ensuring that the company's image and integrity are protected.

7.27 Salary and Allowance

- The company does not provide **salary** or **allowance** to the riders.
- It is the responsibility of the **Prime Business Partner** to manage **rider compensation** based on their own agreements or terms.

7.28 Government Intervention

- In case the **government** halts the provision of **bike taxi services**, efforts will be made to **protect the service**. However, there is **no guarantee** that the service will continue in such a case.
- The company will work towards resolving any government-imposed disruptions, but the situation will depend on legal or governmental restrictions.

7.29 Responsibility for Night Operations

- If the rider works at night, the Prime Business Partner is responsible for attending emergency calls, even during the night.
- This ensures that the business operates smoothly and responsibly during all hours.

7.30 Google Map Reliance or 3rd-Party Maps

- The company fully relies on Google Maps for accurate navigation and service quality.
- In case of issues with Google Maps, the company's experienced developer team will work to resolve the problem. However, this depends on the nature and severity of the issue.

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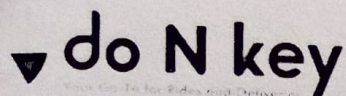
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7.31 Long Ride and Unreachable User

- For **long rides**, it is recommended that the **Prime Business Partner** **fix the price accordingly**.
- The company is **not responsible** if the **end user** is not reachable after the ride has commenced. The **Prime Business Partner** is advised to ensure proper communication with users before and during the ride.

7.32 Negative Marketing Restriction

- The **Prime Business Partner** is **not allowed** to use **derogatory language**, engage in **provocative** or **unethical marketing practices**, make **negative comments**, or engage in any form of **disrespectful marketing** during **branding ads**.
- This ensures that all marketing practices reflect the company's values of professionalism and respect.

7.33 Risk in Buying Electrical Items

- The **Prime Business Partner** takes **full responsibility** for the purchase of **electrical items**.
- If an item is deemed **costly** or **risky**, the **Prime Business Partner** can **deny the order**. This provides the partner with flexibility in managing high-risk purchases.

7.34 Percentage Hike in End-User Bill

- A **hike ranging from 23%** to potentially higher percentages is included in the **end-user bill**.
- This increase covers **third-party costs** like **payment gateways** and other related services. The exact percentage may vary in the future based on updates to third-party terms.
- The company **reserves the right** to adjust these charges accordingly as necessary.

7.35 Emergency Phone Calls and Call Forwarding

- It is crucial for the **Prime Business Partner** to attend emergency phone calls from customers.
- The **Prime Business Partner** is recommended to activate call forwarding to employees and use a dedicated business number.
- Emergency calls will be directed to the **Prime Business Partner's** registered mobile number, and it is essential to address these calls promptly to ensure customer safety and satisfaction.

Prime Business Partner

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7.36 Emergency Contact Numbers

- The **Prime Business Partner** and their employees should always have the **contact numbers of local police stations and ambulance services** readily available.
- This ensures that quick action can be taken in the event of an emergency, safeguarding the **safety of both customers and employees.**

7.37 Subscriber's Responsibility for Emergency Calls

- Attending emergency calls from users is of utmost importance.
- If a complaint is received stating that the subscriber is not responding or answering calls, it may pose a risk to the subscription.
- To mitigate this risk, it is recommended to:
 - Activate call forwarding to employees.
 - Use a dedicated business number.
 - Have local police and ambulance numbers available for emergencies.
- This ensures prompt response and prioritizes customer safety.

7.38 Theft Responsibility

- In the event of **theft** by riders, the **Prime Business Partner** is **responsible for paying compensation.**
- The company expects the **Prime Business Partner** to manage such incidents promptly to maintain **service integrity.**

7.39 Refund Process and Terms of Service

Please note that the onboarding fee is non-refundable. Once payment is received, we commence work immediately to integrate your business into our platform. This includes activities such as system setup, personnel allocation, and other preparatory tasks. Given the immediate commencement of these activities, we are unable to offer refunds.

We understand the importance of making an informed decision. To assist you, we offer a one-week business plan. This allows you to experience our services before committing fully.

By proceeding with the onboarding fee, you acknowledge and accept our non-refundable policy.

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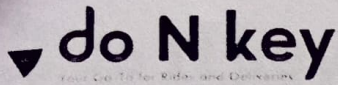
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7.40 Code of Conduct and Professional Behavior

Mutual respect is a **fundamental principle** in all calls and text conversations within our organization. We expect **professionalism** and **courtesy** from both our staff and Prime Business Partners.

The use of foul, abusive, or **inappropriate language** will **not be tolerated**. All calls and messages are **recorded** for quality and accountability purposes. In the event of any **unethical behavior**, we reserve the right to take **immediate action**, which may include:

- **Suspending the account**
- **Taking legal action**, if necessary, to protect the interests of the company
- **Requiring compensation**, depending on the severity of the violation

By agreeing to these terms, you acknowledge that you will fully cooperate with the **law** and **jurisdiction** specified in the agreement. You also understand that failure to adhere to these standards may result in **legal consequences** and potential **financial compensation** based on the severity of the misconduct.

7.41 Agreement Updates

- As our business grows, we may update the Prime Business Partner (PBP) Agreement.
- You will be notified of any future updates.
- Once you sign the initial agreement, it will remain valid for all future updates as well, ensuring that everyone in the community adheres to the same standards and rules.

7.42 Subscription and Pin Code Management

- If the Prime Business Partner fails to make payment for more than one to two weeks, and does not respond to our communications, we reserve the right to sell the assigned pin code to another party.
- We retain full discretion to take this action without further notice.
- If you have valid reasons for a delayed payment, it is important to keep us informed.
- However, it is ultimately the company's decision whether to hold the pin code for you or release it to another Prime Business Partner.

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7.43 Service Operation

- You are authorized to **operate the service** both online and offline as long as the subscription period is active.
- Once the subscription period ends, you are **prohibited from operating** under the brand name of **do N key** in any offline capacity.
- Failure to comply with this condition will be considered a **violation** and may result in **legal action**.

7.44 Termination Process

- Upon ending the subscription, you are required to **respond to all communications** and calls. Simply discontinuing communication while still operating is not acceptable.
- You must **pay all outstanding bills**, along with any applicable penalties.
- **All dues** for service usage must be settled on a monthly basis before formally terminating the subscription.
- Only after clearing all dues may you **officially exit** the operation.
- Failure to settle any outstanding dues entitles the Provider to pursue legal action for recovery. The Prime Business Partner agrees to cover all legal costs, administrative fees, and any related expenses incurred during the complaint or dispute resolution process.
- We encourage open communication to resolve any issues before escalating to legal action.

7.45 Deposit Requirement

- Based on the volume of your business, we reserve the right to request a security deposit at any point during your operation to ensure the smooth continuation of services.
- This measure is taken to protect against potential losses arising from unpaid bills, especially in cases where your business volume increases significantly and unpaid dues could cause substantial losses for us.

7.46 Consent for Use of Information

By signing this agreement, you grant us the rights to share your photo and contact information on our app and website. Your signature signifies acceptance of this term.

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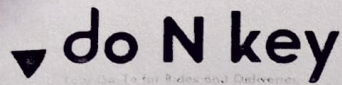
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7.47 Prohibited Activities

You agree not to misuse or spam our system, including but not limited to uploading unauthorized files or engaging in activities unrelated to the platform's intended purpose. Please use the platform solely for its designated business functions to maximize its benefits.

7.48 Respect and Conduct

As a service provider, it is your responsibility to:

- **Respect the privacy of users.**
- Train riders to interact respectfully with users.
- Instruct riders **not to purchase products without proper seals.**

7.49 Violation Consequences

- Your subscription will be canceled.
- You will be required to pay a penalty based on the extent of the loss caused to the platform, including financial and reputational damages.
- You are obligated to cooperate with government officials and legal authorities in all matters related to the violation.

7.50 Compliance with Authorities

By signing this agreement, you agree to cooperate fully with government officials and comply with applicable laws and jurisdiction.

7.51 Further Details

For a complete list of terms and conditions applicable to service providers, please visit our website.

We reserve the right to modify or update any terms and conditions as needed to ensure the smooth and efficient operation of our platform.

By signing this agreement, you acknowledge and accept the above terms and conditions.

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Summary of Key Terms:

Do's

1. Service Operation:

- Operate bike taxi, Auto, Cabs and delivery services exclusively in designated areas.
- Set pricing policies tailored to the local market.

2. Payment and Subscription:

- Pay fees promptly as per the payment schedule.
- Manage subscriptions and payments to avoid disconnection.

3. Confidentiality:

- Keep proprietary information confidential.
- Ensure the confidentiality of account details.

4. Emergency Response:

- Attend emergency calls promptly.
- Have local police and ambulance numbers for safety.

5. Driver Monitoring:

- Monitor and manage driver ratings.
- Remove below 3.5 rated drivers.

6. Legal Compliance:

- Adhere to all legal and contractual obligations.

Don'ts

1. Brand Protection:

- Do not engage in actions that may spoil the brand name.
- Avoid any violation leading to brand damage.

2. Price Violation:

- Do not violate pricing guidelines.
- Avoid absurd price changes.

3. Confidentiality Breach:

- Do not disclose intellectual property or company information.
- Refrain from sharing sensitive operational details.

4. Illegal Activities:

- Do not deal with illegal products.
- Avoid false accusations without proof.

5. Negative Marketing:

- Refrain from using derogatory language or negative marketing.
- Avoid unprofessional words in branding ads.

6. Inactive Account Handling:

- Avoid account inactivity for an extended period.

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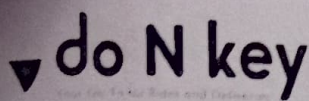
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Understanding Billing & Helpful Tips for Success

Ensuring Smooth Operations as Your Business Takes Off

1. Timely Deliveries:

- Aim to complete deliveries promptly once a booking is taken by your rider. Efficient deliveries help maintain optimal server usage, keeping costs manageable and ensuring uninterrupted service.

2. Managing Rider Count:

- For smooth operations, please note that adding more than 10 riders may incur an additional fee per extra rider. This fee reflects third-party service costs and helps us maintain quality service as your team grows.

3. Tier Upgrades for Growing Business:

- As your business grows, your subscription tier will automatically upgrade based on the number of bookings, including completed and canceled ones. For example, reaching 50 bookings in 3 days will trigger an upgrade, and your next bill will reflect the updated pricing. For a full overview of how pricing is calculated, please refer to page 18.

4. Annual Billing Adjustments:

- To continue offering excellent service, we may adjust billing annually by up to 20% or more, considering factors like inflation. Any changes will be communicated on our official platform in advance, ensuring transparency and preparation time.

5. Late Payment Fee Clause:

If payment exceeds the due date, a late fee of ₹65 per day will be added to the outstanding balance. This fee may change at the company's discretion and can be applied either as a fixed daily charge or a percentage of the total due.

Any benefits, such as additional service days or offers for payments made on the due date, are subject to the company's discretion. These benefits may change or be withdrawn at any time without prior notice.

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Pricing and Booking Management Policy:

To ensure fair billing and to cover operational costs, including cancellations and incomplete bookings, the following monthly subscription pricing structure applies:

Monthly Pricing Tiers:

Total Bookings (Including Canceled and Incomplete) In 3 Days	Monthly Cost (Approx.)	Tier
Less than 65	1500	Open
65 to 114	2000	Tier - 4
115 to 184	2500	Tier - 3
185 to 284	3000	Tier - 2
285 and above	3500	Tier - 1

- All bookings, including canceled and incomplete, are included in the total count for billing purposes.
- Bookings that remain open with assigned riders for too long will be marked as completed to prevent losses.
- Pricing is subject to change based on operational costs and actual usage.

Additional Information:

- We will always keep you informed before changing the pricing or any policy. Our goal is to maintain fairness for everyone, ensuring smooth operations and helping you run your business efficiently.
- The company reserves the right to adjust pricing and policies to ensure sustainability and fairness. Any changes will be communicated accordingly.

Note: The figures provided for the three-day booking cycle are for reference and understanding. The same calculation will apply for a full month. To avoid potential losses from frequent cancellations, a cancellation threshold may be set, or a penalty system may be introduced for end users to discourage frequent cancellations. Prime Business Partners with excessive cancellations may be at risk of review or potential loss of partnership to ensure operational stability.

Full Name: P. Ponvishal

Date: 21.1.2025

Place: Thalavaipuram.

Prime Business Partner

P. Ponvishal.
Signature

Last Updated: 27 Oct, 2024



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